CGHC010185282025 2026:CGHC:34471-DB

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

CRA No. 938 of 2025

1 - Khumaan Sahu S/o Shri Puranik Ram Sahu Aged About 34 Years R/o Village Khopli P/s Utai Distt. Durg C.G. Bharat

2 - Rohni Sahu W/o Puranik Sahu Aged About 55 Years R/o Village Khopli P/s Utai Distt. Durg C.G. Bharat

... Appellants

versus

State Of Chhattisgarh Through Police Station Utai Distt. Durg C.G.

---- Respondent

(Cause title taken from Case Information System)

For Appellants	:	Mr. Ajay Kumar Mishra, Advocate
For Respondent/State	:	Ms. Anusha Naik, Deputy Govt. Advocate

Hon'ble Shri Ramesh Sinha, Chief Justice
Hon'ble Shri Ravindra Kumar Agrawal, Judge

Judgement on Board

***Per* Ramesh Sinha, C.J.**

06/08/2026

1. The present appeal has been listed for consideration on I.A. No. 1 of 2025, which is an application under Section 430 of Bhartiya Nagrik Suraksha Sanhita, 2023 for suspension of sentence and grant of bail. Considering the fact that the appellant No.1 Khumaan Sahu is in jail

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since 27.07.2020 and the appellant No.2 Rohni Sahu is in jail since 31.12.2024, with the consent of the parties, the appeal is being heard finally. Accordingly, the I.A. No. 1 of 2025 is disposed of.

2. Present is a criminal appeal under Section 415(2) of the Bhartiya Nagrik Suraksha Sanhita, 2023 against the impugned judgment of conviction and sentence dated 31.12.2024, passed by the learned 5th Sessions Judge, Durg, in Sessions Case No. 29 of 2021, whereby the appellants have been convicted and sentenced in the following manner:-

For Appellant No.1 Khumaan Sahu:-

Conviction	Sentence
Under Section 302/34 of the IPC	Life Imprisonment with fine of Rs. 100/-, in default of payment of fine 03 months additional R.I.
Under Section 201 of the IPC	03 years R.I. with fine of Rs. 100/-, in default fo payment of fine 03 months additional R.I.
Both the sentences are directed to run concurrently.	

For Appellant No.2 Rohni Sahu:-

Conviction	Sentence
Under Section 302/34 of the IPC	Life Imprisonment with fine of Rs. 100/- in default of payment of fine 03 months additional R.I.

3. The prosecution case in brief is that, on 27.07.2020, the brother of the deceased namely Yogesh Sahu (PW-1) gave a Dehati Merg Intimation (exhibit P-15) to the police that on 26.07.2020, his sister Lokeshwari

Sahu (deceased) informed his mother by mobile phone that her husband is committing marpeet with her and take her back. On 27.07.2020, when he visited to her house, he found her mother-in-law sitting outside of the house and he entered into the room, he found that his sister is lying dead on the bed covered with the blanket. Injuries were noticed on her neck. On the basis of the Dehati Merg Intimation, the police started investigation. Inquest (exhibit P-21) of the dead body of the deceased was prepared in presence of the witnesses and the dead body was sent for its postmortem to Government Hospital, Durg, where Dr. Shrawan Kumar (PW-9) conducted postmortem of the dead body of the deceased and opined the cause of death is asphyxia due to antemortem hanging. Certain injuries have also been noticed by the doctor on the body of the deceased, while conducting the postmortem. The spot was also inspected by the team of FSL Mobile Unit, Durg Range, who gave their spot inspection report (exhibit P-30) and suspected that the death of the deceased appears to be homicidal in view of the circumstances noticed thereon. Dehati Nalishi (exhibit P-33) was recorded for the offence under Sections 302/34 and 201 of the IPC against the present appellants Khumaan Sahu and Smt. Rohni Sahu and two other accused persons Purendra Verma and Naveen @ Bhuru Chandrakar. The FIR (exhibit P-40) was registered against the accused persons on 27.07.2020. Spot map (exhibit P-1) was prepared by the police and exhibit P-25 was prepared by the patwari. The back cover of the mobile phone and broken mobile phone, the empty match box have been seized from the courtyard of the house of the deceased vide seizure memo (exhibit P-

22). The remaining broken pieces of mobile phone, broken pieces of bangles and another mobile phone have been seized from the spot vide seizure memo (exhibit P-26). The accused persons Khumaan Sahu and Smt. Rohni Sahu were arrested on 27.07.2020 and their memorandum statements (exhibit P-2 and P-3) were recorded. The other accused persons Purendra Verma and Naveen Chandrakar @ Bhuru have also been arrested on 28.07.2020 and their memorandum statements (exhibit P-4 and P-5) have been recorded. Another memorandum statement of the accused Khumaan Sahu was recorded by the police which is exhibit P-35. From the accused Khumaan Sahu, one sickle has been seized vide seizure memo (exhibit P-6), the burnt remains of gamchha (by which the deceased was said to have committed suicide by using as ligature) has been seized by seizure memo (exhibit P-7). From the accused Purendra Verma, one motorcycle and one mobile phone has been seized vide seizure memo (exhibit P-8). The 164 CRPC statement of the daughter of the deceased Neha Sahu (exhibit P-17) has been recorded by the JMFC, Durg. Statements of the witnesses under Section 161 of CRPC have also been recorded and after completion of usual investigation, charge sheet has been filed against 04 accused persons, including the present appellants for the offence under Sections 302, 201, 34 of the IPC before the learned Judicial Magistrate First Class, Durg.

4. The case was committed to the court of learned Sessions Judge, Durg, from where it was transferred to the learned trial Court for its trial. The learned trial Court has framed charges against the accused

Khumaan Sahu for the offence under Section 302/34 and 201/34 of IPC whereas the charge against the accused Rohni Sahu has been framed under Section 302/34 of IPC and the charge against the other co-accused persons Purendra Verma and Naveen Chandrakar @ Bhuru have been framed under Section 201/34 of IPC. The accused persons denied the charge and claimed trial.

5. In order to prove the charge against the accused persons, the prosecution examined as many as 12 witnesses. Statement of the accused persons under Section 313 CRPC have been recorded, wherein they denied the circumstances that appears against the, pleaded innocence and have submitted that they have been falsely implicated in the offence.

6. After appreciation of the oral as well as documentary evidence, the learned trial Court acquitted the two other co-accused persons Purendra Verma and Naveen Chandrakar @ Bhuru, however convicted and the present appellants as mentioned hereinabove, hence this appeal.

7. Learned counsel appearing for the appellants would submit that the prosecution has failed to prove its case beyond reasonable doubt. There are material omissions and contradictions in the evidence of prosecution witnesses, and such evidence cannot be considered sufficient to hold the appellants guilty for the alleged offences. The appellant Khumaan Sahu was not present in the house at the time when the deceased has died, and therefore, no liability can be fasten

upon him to explain the circumstances under which the deceased died. The doctor, who conducted the postmortem has also not opined that the deceased died due to homicidal death and he opined that the death was due to hanging. The deceased committed suicide and and her death was not homicidal. There are other inmates in the family and therefore, her death was not in exclusive knowledge of the appellant Khumaan Sahu. Only for the reason that he being the husband of the deceased, he cannot be convicted for commission of murder of the deceased. He would further submit that the evidence of spot inspection report (exhibit P-30) only raises suspicion in view of the circumstances noticed on the spot, however the suspicion cannot be sufficient to hold the appellant guilty. He would also submit that there is no allegation of any active participation in the offence against the appellant No.2 Smt. Rohni Sahu. The evidence come from record that at the time of incident she was sitting outside of her house and it is quite natural that, what transpires inside of her house, she could not see or she was not in knowledge of the same. He would also submit that Neha Sahu (PW-6) is the child witness and daughter of the deceased. She is a tutored witness and her evidence cannot be relied as her evidence is shaky and after declaring her hostile, she stated that her father has beaten her mother. He would further submit that the circumstances are not sufficient to draw a presumption that it is the appellants and no one others, who committed the murder of the deceased, therefore, the appeal of the appellants may be allowed and they may be acquitted from the alleged offences.

8. Per contra, learned State counsel opposes the submissions made by the learned counsel for the appellants and submits that the prosecution has proved its case beyond reasonable doubt. There are sufficient and overwhelming evidence against the appellants to hold their conviction. Although the doctor has opined that the death of the deceased was due to antemortem hanging, but the suspicious circumstances have been noticed by the FSL Mobile Unit that no ligature was found inside the room, the dead body of the deceased was found lying on the bed, broken pieces of bangles and mobile phone seized from the spot and the injuries found on the body of the deceased, for which there is no explanation from the appellants. There is consistent evidence of the parents and brother of the deceased that, she was subjected to cruelty by her husband and in-laws and on that day itself, she made a telephonic call about marpeet with her by her husband. PW-6 has also proved the assault upon the deceased by her husband, who is the minor daughter of the appellant No.1 Khumaan Sahu as well as the deceased. There is no explanation from the appellants, as to how the deceased found dead in suspicious circumstances inside the room and therefore, all the facts clearly establishing the fact that the appellants committed the murder of the deceased and tried to conceal the evidence by putting the dead body on the bed and concealed the ligature by burning it. Therefore, the learned trial Court has rightly convicted and sentenced the appellants, which does not require for any interference.

9. We have heard learned counsel for the parties, considered the rival submissions advanced and perused the record of the trial Court with utmost circumspection.

10. With respect to nature of death of the deceased, the prosecution has relied upon the evidence of PW-1/Yogesh Sahu, brother of the deceased, who noticed injuries on the body of the deceased, when he saw her and PW-8/Dr. Pankaj Tamrakar, the member of FSL Mobile Unit and Dr. Shrawan Kumar (PW-9), who conducted the postmortem of the dead body of the deceased.

11. PW-1, Yogesh Sahu has stated in his evidence that, when he was being informed by his mother that the appellant Khumaan Sahu is committing marpeet with his sister, he visited her house in the next morning and found that the appellant No.2 Rohni Sahu sitting outside of her house, who informed him that his sister is sleeping inside the room. When he entered into the room, he saw her dead body and marks of injuries on her neck and on her back. The appellants Khumaan Sahu and Rohni Sahu admitted their guilt that they committed her murder.

12. PW-9, Dr. Shrawan Kumar, who conducted the postmortem of the Division Bench of the deceased, has proved the postmortem report (exhibit P-23). He noticed blood coming out from right nostril, swelling with redness present on left cheek, swelling on right cheek, cyanosis present in nails, hypostain present in whole back, buttock and legs. Two ligature marks present in neck, first light brown in colour present

on upper part of neck from left angle of mandible to mid part of neck and second dark brown colour circular in shape from left angle of mandible to right side pinna lower part. Second park just inferior to first mark. Swelling found on left temporal and parietal bone region of skull and he opined that the cause of death is asphyxia due to antemortem hanging and time elapsed since death from time of PM between 12 to 36 hours. In cross-examination, the defence have not put any question to rebut the evidence of this witness given in his examination in chief.

13. PW-8, Dr. Pankaj Tamrakar is the member of FSL Mobile Unit, who stated in his evidence that, on 27.07.2020, the request letter received by him from police station Utai, outpost Machandur, district Durg, he along with the team of Mobile Unit inspected the place of occurrence. He found broken pieces of bangles, one broken mobile phone, the room was in disordered condition, a whole was found adjoining to the bolt of the door and particularly, no ligature material was found inside the room and even the weapon used for cutting of ligature has not been found in side the room, and therefore, he suspected that it is not a suicidal nature of death, but homicidal nature of death. He proved his report (exhibit P-30). In cross-examination, he admitted that there is no mention in his report, as to whether the door of the room was opened or closed and that the direction of the dead body has also not been mentioned. He has not taken any fingerprint on the spot. He has not found any injury on the wrist of the deceased. He voluntarily stated that the broken pieces of bangles and disordered condition of the room disclosed about the situation of struggle there. He has not found any

gamchha or scarf in the room. It is quite apparent that whatever he found on the spot, he disclosed it in his report (exhibit P-30).

14. It is relevant to notice here that the spot inspection report (exhibit P-30) submitted by PW-8, which reads as under:-

1. अप. क्र.- 223/2020
2. धारा- 302, 201, 34 भा.द.वि.
3. घटनास्थल- मृतिका का घर ग्राम खोपली।
4. घटना दिनांक व समय- 26.07.2020 के 20:00 बजे से 26.07.2020 के 22:30 बजे के बीच।
5. मृतिका का नाम- लोकेश्वरी साहू w/o खुमान साहू, उम्र 26 वर्ष, ग्राम खोपली उतई, जिला-दुर्ग।
6. घटनास्थल के निरीक्षण हेतु सूचना दिनांक व समय- 27.07.2020,08:44 बजे एवं घटनास्थल निरीक्षण दिनांक व समय- 27.07.2020,10:58 बजे।
7. सूचना का स्त्रोत- पुलिस अनुविभागीय अधिकारी, पाटन द्वारा मोबाइल फोन से।
8. घटना के निरीक्षण हेतु पहुँचने का साधन- सीन आफ क्राइम मोबाइल यूनिट दुर्ग के वाहन क्र. CG-02 AU-0353 द्वारा।
9. घटना का संक्षिप्त विवरण (एफ.आई.आर.)/मर्ग इन्टीमेशन आदि के अनुसार- दिनांक 27.07.2020 को चौकी-मचांदुर पुलिस थाना-उतई में सूचना प्राप्त हुई कि लोकेश्वरी साहू w/o खुमान साहू, उम्र 26 वर्ष, ग्राम खोपली उतई, जिला-दुर्ग की घर के में शयन कक्ष में फांसी लगा लेने से उसकी मृत्यु हो गयी है।
10. घटनास्थल निरीक्षण का विवरण- मै डॉ० पंकज ताम्रकार प्रभारी अधिकारी, एफ.एस.एल. मोबाइल यूनिट, दुर्ग रेंज, दुर्ग, दिनांक 27.07.2020 को लगभग 10:58 बजे घटनास्थल पहुंचा जहाँ पर पुलिस अनुविभागीय अधिकारी, पाटन, थाना प्रभारी, उतई, चौकी प्रभारी, मचांदुर एवं अन्य पुलिस कर्मी उपस्थित थे।

चौकी प्रभारी, मचांदुर द्वारा बताया गया कि मृतिका लोकेश्वरी साहू के मृत शरीर को उसके शयन कक्ष में फांसी के फंदे को काट कर दीवान के समीप जमीन में रखा गया है *(चित्र क्र.-01)*। घटनास्थल का बारीकी से निरीक्षण किया गया घटनास्थल मृतिका लोकेश्वरी साहू का शयन कक्ष है जिसमे स्काई ब्लू रंग से पेंट हुआ लोहे का दरवाजा लगा पाया गया दरवाजे पे लगी कुंडी के समीप लोहे के चौखट से लगी बिना प्लास्टर हुई ईंट की दीवार में 04 इंच लम्बाई एवं 02 इंच चौड़ाई का सुराख पाया गया *(चित्र क्र.-02)*। कमरा को खुलवाने पर मृतिका लोकेश्वरी का शव दरवाजे के तरफ सिर रखे हुए स्थिति में बैंगनी रंग के कम्बल के ऊपर रखा पाया गया। कमरे की दीवारों में प्लास्टर नही हुआ है। कमरे के रूफ में लोहे के पाईप के सहारे टिन शेड लगा हुआ है। इसी पाईप से एक भूरे रंग का सीलिंग पंखा लटका हुआ है *(चित्र क्र.-03)*। कमरे में एक लकड़ी का दीवान रखा पाया गया जिसमे गद्दा बिछा हुआ था साथ ही उस पर कपडे बिखरे एवं अव्यवस्थित पाए गए। गद्दे के साथ जमीन से दीवान की ऊँचाई 2 फिट पायी गयी। पंखे के हुड के ऊपर लगे रॉड में नीचे की तरफ लगे प्लास्टिक व्हर की जमीन से ऊँचाई 09 फीट 08 इंच पायी गयी। जमीन से पंखा के हुड की ऊँचाई 08 फीट 02 इंच पायी गयी। मृतिका के सर से पंजे की (झुकी हुई स्थिति में अंगूठे) की लम्बाई 05 फीट 05 इंच पायी गयी। गर्दन का बारीकी से निरीक्षण किया गया जिसमे Thyroid Cartilage के ऊपर Prominent एवं लगभग असमान लिगेचर के निशान *(चित्र क्र.-04)* स्पष्ट दृष्टिगोचर हो रहे थे जो ये इंगित करते हैं कि फांसी के फंदे हेतु दुपट्टे/गमछे जैसी वस्तु का उपयोग किया गया होगा। गर्दन में बने लिगेचर के निशान की मोटाई 12.2 मिमी (मध्य), (बायीं) 12.1 मिमी एवं (दायीं) 14.3 मिमी पायी गयी। कमरे में कांच की नीले रंग की चूड़ी के चार नग एवं लाल रंग की चूड़ी के दो नग टुकडे, एक टूटा मोबाइल, अव्यवस्थित कमरा, कुंडी के बगल की दीवाल में सुराख का पाया जाना एवं विशेषकर Ligature Material का ना पाया जाना साथ ही यदि Ligature Material को किसी वस्तु से काटा गया है तो उपयोग में लाये गए हंसिया/कैंची आदि का ना पाया जाना संदेह की स्थिति निर्मित करता है। इस प्रकार यह घटना आत्महत्यात्मक (Suicidal) प्रकृति का कम एवं हत्यात्मक

(Homicidal) प्रकृति की ज्यादा प्रतीत होती है। मृत्यु का वास्तविक कारण पी.एम. के पश्चात् ही ज्ञात हो पायेगा।

15. From the evidence of PW-9/Dr. Shrawan Kumar, who conducted the postmortem examination and proved the postmortem report (Exhibit P-23), it is established that the deceased had blood coming out from the right nostril, swelling and redness on the left cheek, swelling on the right cheek, cyanosis of the nails, hypostasis over the back, buttocks and legs, two ligature marks on the neck and swelling over the left temporal and parietal region of the skull. He opined that the cause of death was asphyxia due to antemortem hanging and that the time elapsed since death was between 12 to 36 hours. Though the medical evidence establishes antemortem hanging, the same by itself does not conclusively establish whether the hanging was suicidal or homicidal. The surrounding circumstances at the place of occurrence, therefore, assume significance.

16. In this regard, PW-8/Dr. Pankaj Tamrakar, a member of the FSL Mobile Unit, found broken pieces of bangles, a broken mobile phone and the room in a disordered condition, besides a hole adjoining the bolt of the door. Significantly, no ligature material or the instrument allegedly used for cutting the ligature was found inside the room, and no gamchha or scarf was found which could have been used as a ligature. PW-8 stated that the broken bangles and the disordered condition of the room disclosed signs of struggle. These circumstances, coupled with the evidence of PW-1/Yogesh Sahu that he found injuries/marks on the neck and back of the deceased when he saw her dead body, and

his evidence regarding the appellants' conduct immediately before and after the occurrence, constitute relevant circumstances to be considered in determining whether the antemortem hanging was suicidal or homicidal. Thus, the medical evidence, read with the condition of the place of occurrence and the surrounding circumstances, lends support to the prosecution case that the death was homicidal in nature.

17. So far as the involvement of the appellant in the offence in question is concerned, we again examined the evidence produced by the prosecution.

18. PW-1, Yogesh Sahu is the brother of the deceased, he stated in his evidence that when his mother informed him that his sister is being assaulted by her husband, he visited her house in the next morning along with his friend Sonu Thakur. Her mother-in-law was sitting outside of the house and informed that his sister is sleeping inside the room. When he went inside the room, he found his sister death and injuries noticed on her neck and back. When he asked from the appellant Khumaan Sahu, he and Rohni Sahu confessed that they have assaulted her. He also disclosed that, they burnt the towel near canal and the sickle was thrown in the drainage. He lodged the report and the police proceedings were started. In cross-examination, he stated that when he reached to the house of his sister, the appellant Khumaan Sahu was not present there and he came there after about half an hour. He denied that he has not seen any injuries on the body of his sister. He was being informed by his another sister and mother

that the deceased was being assaulted by her husband Khumaan Sahu. He admitted that when he reached to the house of the deceased, the door of the room was bolted from outside and when they entered inside the room, they found her dead body was covered by a bed-sheet. He admitted that Rohni has not harassed his sister and her sister has not made any complaint against her mother-in-law.

19. PW-2, Indrani Sahu is the cousin sister of the deceased, she stated in her evidence that there was frequent quarrel between the deceased and her husband, which was informed by the deceased to her. On 16.07.2020, on the occasion of her birthday, she received a telephonic call to the deceased and then she informed her that there was a quarrel going on between her and her husband. Again on 26.07.2020, she received a telephonic call from the deceased and she informed her about marpeet by the appellant Khumaan with her. She also asked her to take her back and she does not want to live there. She convinced her that it is a lock-down period and they will come in the next morning and she would be ready to come back. In the evening at 6:00 PM, she again asked her to be ready in the next morning to come back, but at about 8:00 PM her call was unanswered. On 27.07.2020, her brother Yogesh had gone there to bring her back and then he informed them about her death. Ion cross-examination, though she admitted that the deceased Lokeshwari was happy with her husband and children in her matrimonial house, but she denied that the appellant Khumaan has not committed marpeet with her. She also denied that the appellant Khumaan has not committed any marpeet

with the deceased in her presence. She also denied that there was no injury on the body of the deceased. She also denied the suggestion that the deceased was having affair with another person and therefore she committed suicide. She admitted that the incident of 16.07.2020 has not been reported by her or her family members to the police.

20. PW-3 is the mother of the deceased, he stated in her evidence that on 26.07.2020, her daughter Lokeshwari made a telephonic call to Indrani Sahu and informed that her husband and mother-in-law committing marpeet with her and to save her. She tried to search the vehicle to go there, but she could not found any vehicle and in the next morning, she sent her daughter and his friend therefore, and then his son Yogesh informed that Lokeshwari has been murdered. A month back from the date of incident, the appellant Khumaan demanded Rs. 10,000/- for payment of installment of the vehicle. She borrowed the same from his sister and given it to the appellant Khumaan. In cross-examination, she admitted that the harassment to her daughter have not been reported to the police. Even the incident of 26.07.2020 has not been reported to the police. She admitted that she had not lodged any complaint that the mother-in-law of her daughter has harassed her.

21. PW-4, Mohanlal Sahu is the uncle of the deceased. He stated in his evidence that in the 6th month of year 2020, he received a telephonic call from the deceased that the appellant Khumaan and Rohni Bai are beating her. On the next morning, he sent his nephew Yogesh to the house of the deceased, from where he informed him that the

deceased has died. He asked him to inform the police and went there and then the police proceedings were started. In cross-examination, he admitted that the deceased has made a telephonic call to his daughter Indrani and she told her about the incident.

22. PW-6, Ku. Neha Sahu is the daughter of the deceased and the appellant Khumaan. When she was being examined by the Court about her IQ, she disclosed that her grandparents have not tutored her and after recording satisfaction, her evidence has been recorded. She stated in her evidence that she did not know, as to how her mother has died. When the leading question was being asked, she stated that she stayed with her grandparents. She denied the suggestion that a day before the incident, her father had beaten her mother. She did now know about any assault by her father to her mother.

23. PW-11, Shyam Singh Netam is the investigating officer, who proved the investigation, which he has conducted and the documents prepared during the investigation. He being the procedural witness, duly proved the process of investigation.

24. PW-12, Sonu Thakur is the friend of PW-1/Yogesh, who accompanied him with they had gone to the house of the deceased. He stated in his evidence that in the eve of the incident, the deceased made a telephonic call to her mother that the appellant Khumaan is committing marpeet with her and to save her. She disclosed the same to Yogesh, then they proceeded to her house. When they reached there, they found her mother-in-law Rohni sitting outside of the house and she

informed them that the deceased is sleeping inside the room. When they gone there, they found the room was bolted from outside, and when they entered inside the room, they found her dead body covered with a bed-sheet. They saw the injuries on her neck and on being asked, her mother-in-law Rohni shown her ignorance. She also informed that her husband has gone to work. The accused Khumaan took out the rope from *talab* and sickle from drainage. At this stage, he was declared hostile and then he admitted that the deceased informed her mother in the night about the marpeet with her and her mother informed him about the incident. In cross-examination, though certain discrepancies was asked with that of his police statement (exhibit P-39), but the said discrepancies does not found to be sufficient to discredit his evidence. From perusal of his 161 CRPC statement (exhibit P-39), there is no discrepancy in substantive allegation that on the date of incident, he visited to the house of the deceased along with Yogesh Sahu, her mother-in-law sitting outside of the house, she informed them that the deceased was sleeping inside the room and when they opened the door and entered inside the room, they found the deceased lying dead on the bed and her dead body was covered with a blanket. They saw the injuries on the neck of the deceased and when they asked from the appellants, the confessed about marpeet with her and committed her murder. There is no omission or contradiction in the substantive part of his evidence and he duly supported the prosecution’s case.

25. From all these evidence, it is quite clear that in the eve of the incident, the deceased was being beaten by the appellant Khumaan Sahu, the incident was informed to Indrani Sahu (PW-2) by the deceased and who in turn informed it to her mother and then her mother sent Yogesh Sahu (PW-1) to the house of the deceased. When he went on the spot, he found the dead body of the deceased lying on the bed covered with the bed-sheet/blanket having injuries on her body. As per the report of FSL Mobile Unit (exhibit P-30), the broken pieces of bangles and mobile phone was found there, the room was disordered and there was no ligature found in the room. As per the defence of the appellant, the deceased committed suicide by hanging, but there is no ligature found inside the room. From the evidence of Yogesh (PW-1), when he reached on the spot, the appellant Khumaan was not present there and he came after half an hour. When the appellants taken a defence that the deceased committed suicide by hanging, then the body should be in hanging condition, if it was taken down then they have to explain, who has taken her down and where the ligature is and why they have not informed immediately to the police or other persons of the vicinity, or even her parents. All these suspicious circumstances have not been explained by the appellant, particularly the appellant Khumaan, who is the husband of the deceased and the dead body of the deceased found insider of her room. In such circumstance, the adverse presumption under Section 106 of the Indian Evidence Act, 1872 is to be drawn against the appellant Khumaan Sahu as he failed to explain the circumstances, which was in his special knowledge about death of the deceased.

26. In the case of **Balvir Singh v. State of Uttarakhand,** (2023) 16 SCC 575, the Hon'ble Supreme Court in Para 34 to 40 has held as under:

> "34. Section 106 of the Evidence Act, states as under:
>
> > "106. Burden of proving fact especially within knowledge. When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (a) When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon him. (b) A is charged with travelling on a railway without a ticket, The burden of proving that he had a ticket is on him.
>
> 35. Section 106 of the Evidence Act referred to above provides that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. The word "especially" means facts that are pre-eminently or exceptionally within the knowledge of the accused. The ordinary rule that applies to the criminal trials that the onus lies on the prosecution to prove the guilt of the accused is not in any way modified by the rule of facts embodied in Section 106 of the Evidence Act. Section 106 of the Evidence Act is an exception to Section 101 of the Evidence Act. Section 101 with its illustration (a) lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not

intended to relieve it of that duty. On the contrary, it is designed to meet certain exceptional cases in which it would be impossible or at any rate disproportionately difficult for the prosecution to establish the facts which are, “especially within the knowledge of the accused and which, he can prove without difficulty or inconvenience.

36. In Shambhu Nath Mehra v. The State of Ajmer reported in AIR 1956 SC 404, this Court while considering the word “especially” employed in Section 106 of the Evidence Act speaking through Vivian Bose, J., observed as under:

> “11. … The word “especially” stresses that. It means facts that are pre-eminently or exceptionally within his knowledge. If the section were to be interpreted otherwise, it would lead to the very startling conclusion that in a murder case the burden lies on the accused to prove that he did not commit the murder because who could know better than he whether he did or did not. It is evident that that cannot be the intention & the Privy Council has twice refused to construe this section, as reproduced in certain other Acts outside India, to mean that the burden lies on an accused person to show that he did not commit the crime for which he is tried. These cases are Attygalle v. The King, 1936 PC 169 (AIR V 23) (A) and Seneviratne v. R, 1936-3 All ER 36 at p. 49 (B).”

37. The aforesaid decision of Shambhu Nath (supra) has been referred to and relied upon in

Nagendra Sah v. State of Bihar reported in (2021) 10 SCC 725, wherein this Court observed as under:

> "22. Thus, Section 106 of the Evidence Act will apply to those cases where the prosecution has succeeded in establishing the facts from which a reasonable inference can be drawn regarding the existence of certain other facts which are within the special knowledge of the accused. When the accused fails to offer proper explanation about the existence of said other facts, the court can always draw an appropriate inference.
>
> 23. When a case is resting on circumstantial evidence, if the accused fails to offer a reasonable explanation in discharge of burden placed on him by virtue of Section 106 of the Evidence Act, such a failure may provide an additional link to the chain of circumstances. In a case governed by circumstantial evidence, if the chain of circumstances which is required to be established by the prosecution is not established, the failure of the accused to discharge the burden under Section 106 of the Evidence Act is not relevant at all. When the chain is not complete, falsity of the defence is no ground to convict the accused." (Emphasis supplied)

38. In Tulshiram Sahadu Suryawanshi and Another v. State of Maharashtra reported in (2012) 10 SCC 373, this Court observed as under:

“23. It is settled law that presumption of fact is a rule in law of evidence that a fact otherwise doubtful may be inferred from certain other proved facts. When inferring the existence of a fact from other set of proved facts, the court exercises a process of reasoning and reaches a logical conclusion as the most probable position. The above position is strengthened in view of Section 114 of the Evidence Act, 1872. It empowers the court to presume the existence of any fact which it thinks likely to have happened. In that process, the courts shall have regard to the common course of natural events, human conduct, etc. in addition to the facts of the case. In these circumstances, the principles embodied in Section 106 of the Evidence Act can also be utilised. We make it clear that this section is not intended to relieve the prosecution of its burden to prove the guilt of the accused beyond reasonable doubt, but it would apply to cases where the prosecution has succeeded in proving facts from which a reasonable inference can be drawn regarding the existence of certain other facts, unless the accused by virtue of his special knowledge regarding such facts, failed to offer any explanation which might drive the court to draw a different inference. It is useful to quote the following observation in State of W.B. v. Mir Mohammad Omar [(2000) 8 SCC 382 : 2000 SCC (Cri) 1516]: (SCC p. 393, para 38)

> “38. Vivian Bose, J., had observed that Section 106 of the Evidence Act is designed to meet certain exceptional cases in which it would be impossible for the prosecution to establish certain facts which are particularly within the knowledge of the accused. In Shambu Nath Mehra v. State of Ajmer [AIR 1956 SC 404 : 1956 Cri LJ 794] the learned Judge has stated the legal principle thus: (AIR p. 406, para 11)
>
> ‘9. This lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, it is designed to meet certain exceptional cases in which it would be impossible, or at any rate disproportionately difficult for the prosecution to establish facts which are “especially” within the knowledge of the accused and which he could prove without difficulty or inconvenience.
>
> The word “especially” stresses that. It means facts that are pre-eminently or exceptionally within his knowledge.’”” (Emphasis supplied)

39. In Trimukh Maroti Kirkan v. State of Maharashtra reported in (2006) 10 SCC 681, this Court was considering a similar case of homicidal death in the confines of the house. The following observations are considered relevant in the facts of the present case:

> “14. If an offence takes place inside the privacy of a house and in such

circumstances where the assailants have all the opportunity to plan and commit the offence at the time and in circumstances of their choice, it will be extremely difficult for the prosecution to lead evidence to establish the guilt of the accused if the strict principle of circumstantial evidence, as noticed above, is insisted upon by the courts. A Judge does not preside over a criminal trial merely to see that no innocent man is punished. A judge also presides to see that a guilty man does not escape. Both are public duties. (See Stirland v. Director of Public Prosecutions [1944 AC 315 : (1944) 2 All ER 13 (HL)] — quoted with approval by Arijit Pasayat, J. in State of Punjab v. Karnail Singh [(2003) 11 SCC 271 : 2004 SCC (Cri) 135].) The law does not enjoin a duty on the prosecution to lead evidence of such character which is almost impossible to be led or at any rate extremely difficult to be led. The duty on the prosecution is to lead such evidence which it is capable of leading, having regard to the facts and circumstances of the case. Here it is necessary to keep in mind Section 106 of the Evidence Act which says that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (b) appended to this section throws some light on the content and scope of this provision and it reads:

“(b) A is charged with travelling on a railway without ticket. The burden of proving that he

had a ticket is on him."

15. Where an offence like murder is committed in secrecy inside a house, the initial burden to establish the case would undoubtedly be upon the prosecution, but the nature and amount of evidence to be led by it to establish the charge cannot be of the same degree as is required in other cases of circumstantial evidence. The burden would be of a comparatively lighter character. In view of Section 106 of the Evidence Act there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how the crime was committed. The inmates of the house cannot get away by simply keeping quiet and offering no explanation on the supposed premise that the burden to establish its case lies entirely upon the prosecution and there is no duty at all on an accused to offer any explanation.

xxx xxx xxx

22. Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime they were seen together or the offence takes place in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation how the wife received injuries or offers an explanation which is found to be false, it is a

> strong circumstance which indicates that he is responsible for commission of the crime. ……" (Emphasis supplied)

40. The question of burden of proof, where some facts are within the personal knowledge of the accused, was examined by this Court in the case of State of W.B. v. Mir Mohammad Omar and Others reported in (2000) 8 SCC 382. In this case, the assailants forcibly dragged the deceased from the house where he was taking shelter on account of the fear of the accused, and took him away at about 2:30 in the night. The next day in the morning, his mangled body was found lying in the hospital. The trial court convicted the accused under Section 364, read with Section 34 of the IPC, and sentenced them to ten years rigorous imprisonment. The accused preferred an appeal against their conviction before the High Court and the State also filed an appeal challenging the acquittal of the accused for the charge of murder. The accused had not given any explanation as to what happened to the deceased after he was abducted by them. The Sessions Judge, after referring to the law on circumstantial evidence, had observed that there was a missing link in the chain of evidence after the deceased was last seen together with the accused persons, and the discovery of the dead body in the hospital, and concluded that the prosecution had failed to establish the charge of murder against the accused persons beyond any reasonable doubt. This Court took note of the provisions of Section 106 of the Evidence Act, and laid down the following principles in paras 31 to 34 of the report:

“31. The pristine rule that the burden of proof is on the prosecution to prove the guilt of the accused should not be taken as a fossilised doctrine as though it admits no process of intelligent reasoning. The doctrine of presumption is not alien to the above rule, nor would it impair the temper of the rule. On the other hand, if the traditional rule relating to burden of proof of the prosecution is allowed to be wrapped in pedantic coverage, the offenders in serious offences would be the major beneficiaries and the society would be the casualty.

32. In this case, when the prosecution succeeded in establishing the afore-narrated circumstances, the court has to presume the existence of certain facts. Presumption is a course recognised by the law for the court to rely on in conditions such as this.

33. Presumption of fact is an inference as to the existence of one fact from the existence of some other facts, unless the truth of such inference is disproved. Presumption of fact is a rule in law of evidence that a fact otherwise doubtful may be inferred from certain other proved facts. When inferring the existence of a fact from other set of proved facts, the court exercises a process of reasoning and reaches a logical conclusion as the most probable position. The above principle has gained legislative recognition in India when Section 114 is incorporated in the Evidence Act. It

> empowers the court to presume the existence of any fact which it thinks likely to have happened. In that process the court shall have regard to the common course of natural events, human conduct etc. in relation to the facts of the case.
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> 34. When it is proved to the satisfaction of the Court that Mahesh was abducted by the accused and they took him out of that area, the accused alone knew what happened to him until he was with them. If he was found murdered within a short time after the abduction the permitted reasoning process would enable the Court to draw the presumption that the accused have murdered him. Such inference can be disrupted if the accused would tell the Court what else happened to Mahesh at least until he was in their custody." (Emphasis supplied) ".

27. So far as the involvement of appellant No.2 Rohni Sahu is concerned, it has come in the evidence of the witnesses that she has not committed any marpeet with the deceased at any point of time and she has not made any complaint against her, while she was in her matrimonial house. From the evidence of Indrani (PW-2), he received telephonic call of the deceased, who informed her that her husband i.e. Khumaan Sahu committing marpeet with her. It is the allegation against the appellant No.2 Rohni Sahu that she too had beaten the deceased along with the appellant Khumaan Sahu and she confessed her guilt before Yogesh (PW-1), however from the entire evidence, the

allegation against the appellant Rohni Sahu does not found sufficient to hold her conviction for the offence under Section 302/34 of IPC for sharing common intention with the appellant Khumaan Sahu to commit murder of the deceased. There is no charge against the appellant No.2 regarding causing disappearance of the evidence of offence. In view of the aforesaid facts and evidence available on record, she is entitled for benefit of doubt.

28. In order to attract the aid of Section 34 of the IPC, the prosecution is required to establish that the criminal act was done by several persons in furtherance of the common intention shared by all of them. Mere presence at the place of occurrence or subsequent conduct, without reliable evidence indicating participation pursuant to a common intention, would not by itself be sufficient to sustain a conviction with the aid of Section 34 of the IPC. In the present case, apart from the statement attributed to appellant No.2 by PW-1 regarding confession of guilt, there is no cogent and reliable evidence showing her participation in the assault upon the deceased or establishing that she shared the common intention with appellant No.1 to cause the death of the deceased. On the contrary, the evidence of the prosecution witnesses does not establish that appellant No.2 had assaulted the deceased at any point of time. The circumstances relied upon by the prosecution, therefore, do not form a complete and conclusive chain so as to establish her common intention to commit the offence of murder beyond reasonable doubt.

29. In view of the foregoing discussion and the evidence available on record, this Court finds that although the prosecution has established the homicidal nature of the death of the deceased, the evidence against appellant No.2/Rohni Sahu is not sufficient to establish, beyond reasonable doubt, her participation in the commission of the murder or that she shared the common intention with appellant No.1/Khumaan Sahu to commit the said offence. The circumstances relied upon by the prosecution do not form a complete and conclusive chain against her and, therefore, she is entitled to the benefit of doubt. Accordingly, the conviction and sentence of the **appellant No. 2 Rohni Sahu** under Section 302/34 of the IPC is **set aside** and she is **acquitted** of the said charge and the appeal with respect to the **appellant No.2 Rohni Sahu** is **allowed**.

30. So far as appellant No.1/Khumaan Sahu is concerned, on a careful and cumulative consideration of the evidence available on record, this Court finds that the prosecution has successfully established his involvement in the commission of the murder of the deceased beyond reasonable doubt. The medical evidence, the circumstances proved by the prosecution and the ocular and other corroborative evidence available on record form a complete and consistent chain pointing towards the guilt of appellant No.1. No material contradiction or infirmity has been brought on record so as to discredit the prosecution case or extend the benefit of doubt to him. Accordingly, the conviction of appellant No.1/Khumaan Sahu under Sections 302 and 201 of the IPC and the sentences imposed upon him by the learned Trial Court

do not call for any interference and are hereby affirmed. The appeal with respect to the **appellant No.1 Khumaan Sahu** is, accordingly, **dismissed**.

31. The appellant No.1 Khumaan Sahu is reported to be in jail since 27.07.2020. He shall serve the remaining part of the sentence as awarded by the learned trial Court.

32. Registry is directed to send a copy of this judgment to the concerned Superintendent of Jail, where the appellant No.1 **Khumaan Sahu** is undergoing his jail sentence to serve the same on the appellant informing him that he is at liberty to assail the present judgment passed by this Court by preferring an appeal before the Hon'ble Supreme Court with the assistance of High Court Legal Services Committee or the Supreme Court Legal Services Committee.

33. The appellant No.2 Rohni Sahu is also reported to be in jail since 31.12.2024. She shall be released forthwith, if not required in any other case.

34. Keeping in view the provisions of section 481 of BNSS 2023, the appellant No.2 Rohni Sahu is directed to forthwith furnish a personal bond of some of Rs. 25,000/- with one surety in the like amount before the court concerned, which shall be effective for a period of six months along with an undertaking that in the event of filing of special leave petition against the instant judgement or for grant of leave, the aforesaid appellant on receipt of notice thereof shall appear before the Hon'ble Supreme Court.

35. Let a copy of this judgment and the original records be transmitted to the trial Court concerned forthwith for necessary information and compliance.

Sd/-
(Ravindra Kumar Agrawal)
Judge

Sd/-
(Ramesh Sinha)
Chief Justice

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